

23STCV07200 23STCV07200

County: los-angeles

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Case Number: 23STCV07200 Hearing Date: August 21, 2026 Dept: 1

Final

Approval of Class Action Settlement

Department SSC-1

Hon. Theresa M. Traber

Flores vs Continental Forge Company, LLC

Case Number: 23STCV07200

Hearing: August 21, 2026

TENTATIVE

RULING

The Court hereby GRANTS final approval and awards the following: (1) \$125,669.50 (33 1/3% of the USA) for attorney fees to Class Counsel, Moon Law Group, PC; (2) \$16,954.99 for attorney costs to Class Counsel; (3) an enhancement payment of \$5,000.00 to the class representative, Miguel A. Flores; (4) \$15,000.00 (75% of \$20,000 PAGA penalty) to the LWDA; and (5) \$7,250.00 for settlement administration costs to Phoenix Class Action Administration Solutions.

BACKGROUND

This

is a wage and hour class action. Defendant Continental Forge Company, LLC is an aluminum forging provider with its principal place of business in Los Angeles, California.

Plaintiff

commenced a class action on April 3, 2023, by filing a complaint alleging the following causes of action against Defendant: (1) Failure to Pay Minimum Wages [Cal. Lab. Code §§ 204, 1194, 1194.2, and 1197]; (2) Failure to Pay Overtime Compensation [Cal. Lab. Code §§ 1194 and 1198]; (3) Failure to Provide Meal Periods [Cal. Lab. Code §§ 226.7, 512]; (4) Failure to Authorize and Permit Rest Breaks [Cal. Lab. Code § 226.7]; (5) Failure to Indemnify Necessary Business Expenses [Cal. Lab. Code § 2802]; (6) Failure to Timely Pay Final Wages at Termination [Cal. Lab. Code §§ 201-203]; (7) Failure to Provide Accurate Itemized Wage Statements [Cal. Lab. Code § 226]; and (8) Unfair Business Practices [Cal. Bus. & Prof. Code §§ 17200, et seq.].

On

July 25, 2023, Plaintiff filed a first amended complaint, alleging an additional cause of action for Civil Penalties Under PAGA [Cal. Lab. Code § 2699, et seq.].

On

September 23, 2024, the Parties mediated the instant action with Tripper Ortmann, Esq., where they reached a settlement. On August 22, 2025, Counsel filed a fully executed copy of the resulting Class Action and PAGA Settlement Agreement, attached as Exhibit 1 to the Declaration of Kane Moon ("Moon Decl.") ISO Preliminary Approval.

On

February 2, 2026, the Court continued preliminary approval for further briefing and revisions. In response, on February 26, 2026, Counsel filed a fully executed First Amended Class Action and PAGA Settlement Agreement attached as Exhibit 1 to the Supplemental Declaration of Kane Moon ("Moon Supp. Decl.") ISO Preliminary Approval.

On

March 11, 2026, the Court continued preliminary approval for further briefing and revisions. In response, on March 30, 2026, Counsel filed a fully executed Second Amended Class Action and PAGA Settlement Agreement attached as Exhibit 1 to the Supplemental Declaration of Kane Moon ("Moon 2nd Supp. Decl.") ISO

Preliminary Approval.

Preliminary

Approval was granted on April 6, 2026. Notice was given to the Class Members as ordered. (See Declaration of Yesenia Henriquez ("Henriquez Decl.").)

Now before the Court is the motion for
final approval of the settlement agreement.

CLASS

DEFINITION AND ESSENTIAL MONETARY TERMS OF SETTLEMENT AGREEMENT

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"Class" means all persons employed by
CFC in California and classified as a non-exempt hourly paid employee who
worked for CFC during the Class Period. (Settlement Agreement, ¶1.5.)

o "Class
Period" means the period from April 3, 2019 to the date of preliminary
approval. (¶1.12.)

o
There are 137 Class Members.
(Henriquez Decl., ¶¶3,6.)

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"PAGA Member" means a person employed
by CFC in California and classified as a nonexempt hourly paid employee who
worked for CFC during the PAGA Period. (¶1.4.)

o "PAGA
Period" means the period from April 3, 2022, to the date of preliminary
approval of the Settlement. (¶1.30.)

o There
are 105 Aggrieved Employees who worked a total of 14,489 Pay Periods during the
PAGA Period. (Henriquez Decl., ¶16.)

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Based on a review of its records to date, CFC

estimates as of the date of mediation, there are 136 Class Members who collectively worked a total of 19,787 Workweeks, and 71 PAGA Members who worked a total of 8,170 PAGA Pay Periods. (§7.3) Should the actual number of Workweeks increase by more than 15% from the original estimate of 19,787, less the 213 Workweeks between 19,787 and 20,000 Workweeks CFC already covered as a good faith deposit, (i.e., the total number of Workweeks is more than 22,542), CFC shall increase the Gross Settlement Amount by a proportionate amount (i.e., \$19.62 per Workweek above 22,542). (§8)

o

The

total number of Workweeks was 26,467) which exceeded 22,542 by 3,925 Workweeks; thus, the Escalator Clause was triggered. (Henriquez Decl., §13.) Accordingly, the Uncredited Settlement Amount increased by \$77,008.50 ($3,925 \times \19.62), from \$300,000.00 to \$377,008.50. (Ibid.)

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The Gross Settlement Amount (GSA) is \$469,508.50[1], non-reversionary. (§13.1; Henriquez Decl., §13.)

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Uncredited Settlement

Amount ("USA"): From the Gross Settlement Amount, Ninety-Two Thousand Five Hundred Dollars and Zero Cents (\$92,500.00) shall be credited to Defendant to reflect the amount Defendant already paid to the Settlement Class to resolve individual claims. Accordingly, Defendant will pay a total of Three Hundred Thousand Dollars and Zero Cents (\$377,008.50) and no more to the Settlement Administrator. (§13.2)

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The Net Settlement Amount (Net) (\$207,339) is the USA minus the following:

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Up to \$125,669.50 (33.33% of the USA) for attorney fees (§13.2.2; Henriquez Decl., §14);

o

Up to \$18,000 for litigation costs (Ibid.);

o

Up to \$5,000 for a Service

Payment to the Named Plaintiff (§3.2.1.);

o

Up to \$6,000 for settlement

administration costs (§3.2.3.) and

o

Payment of \$15,000 (75% of

\$20,000 PAGA Payment) to the LWDA. (§3.2.4.)

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Defendant will pay their share of

taxes in addition to the GSA. (§3.1.)

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No claim form is required. (§3.1)

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Funding of Settlement:

CFC shall fully fund the Uncredited Settlement Amount, and also fund the amounts necessary to fully pay CFC's share of payroll taxes by transmitting the funds to the Administrator no later than fourteen (14) days after Final Judgment. (§4.1.)

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Uncashed

Settlement Checks:

The face of each check shall prominently state the date (not less than 180 days after the date of mailing) when the check will be voided. (§4.2.1.) For any Class Member whose Individual Class Payment check is uncashed and cancelled after the void date, the Administrator shall transmit the funds represented by such checks to the California Controller's Unclaimed Property Fund in the name of the Class Member thereby leaving no "unpaid residue" subject to the requirements of California Code of Civil Procedure Section 384, subd. (b). (§4.2.3.)

The proposed Settlement was

submitted to the LWDA on August 21, 2025. (Moon Decl. ISO Preliminary Approval, Exhibit 3.) The First Amended Settlement was submitted to the LWDA on February 23, 2026. (Moon Supp. Decl. ISO Preliminary Approval, Exhibit 4.) The Second Amended Settlement was submitted to the LWDA on March 30, 2026. (Moon 2nd Supp. Decl. ISO Preliminary Approval, Exhibit 4.)

ANALYSIS OF SETTLEMENT AGREEMENT

A.

Does

a presumption of fairness exist?

The Court preliminarily found in its Order on April 6, 2026 that the presumption of fairness should be applied. No facts have come to the Court's attention that would alter that preliminary conclusion. Accordingly, the settlement is entitled to a presumption of fairness as set forth in the preliminary approval order.

B. Is the settlement
fair, adequate, and reasonable?

The settlement was preliminarily found to be fair, adequate and reasonable. Notice has now been given to the Class and the LWDA.

Reaction of the class
members to the proposed settlement.

Number of class
members: 137 (Henriquez Decl., ¶¶3,6.)

Number of notice
packets mailed: 137 (Id. at ¶15.)

Number of
undeliverable notices: 0 (Id. at ¶18.)

Number of

opt-outs: 0 (Id. at ¶9.)

Number of
objections: 0 (Id. at ¶10.)

Number of
participating Settlement Class Members: 137 (Id. at ¶12.)

Average
individual Class payment: \$1,484.55 (Id. at
¶15.)

Highest
estimated Class payment: \$2,812.50 (Ibid.)

Lowest
estimated Class payment: \$7.68 (Ibid.)

Number of PAGA
Members: 105 (Id. at ¶16.)

Average PAGA
payment: \$47.62 (Ibid.)

Highest
estimated PAGA payment: \$72.12 (Ibid.)

Lowest
estimated PAGA payment: \$0.35 (Ibid.)

The Court finds that the notice was
given as directed and conforms to due process requirements. Given the reactions of the Class Members and
the LWDA to the proposed settlement and for the reasons set for in the Preliminary
Approval order, the settlement is found to be fair, adequate, and reasonable.

C.

Attorney

Fees and Costs

Class Counsel request \$125,669.50 (33.33% of the USA) in fees and

litigation costs and expenses in the amount of \$16,954.99 to Class Counsel. (Moon Decl. ISO Final Approval, ¶17.) The Settlement provides for attorney's fees up to \$125,669.50 (33.33%) and costs of \$18,000 (Settlement Agreement, ¶3.2.2; Henriquez Decl., ¶14.); the class was provided notice of the requested awards and none objected. (Henriquez Decl., ¶10 and Exhibit A thereto.)

“Courts recognize two methods for calculating attorney fees in civil class actions: the lodestar/multiplier method and the percentage of recovery method.”
(Wershba at 254.)

Here, class counsel requests attorney fees using the percentage method.
(Motion ISO Final, pgs. 20-24.)

The fee request represents 33.33% of the Uncredited Settlement Amount which is the average generally awarded in class actions. See *In re Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 558, fn. 13 (“Empirical studies show that, regardless whether the percentage method or the lodestar method is used, fee awards in class actions average around one-third of the recovery.”).

Counsel have provided the following lodestar information:

Biller

Hours

Rate

Total

Kane Moon

17.1

\$950.00

\$16,245.00

Allen Feghali

5.2

\$900.00

\$4,680.00

Edwin
Kamarzarian

20.9

\$700.00

\$14,630.00

Julie S. Oh

23.1

\$700.00

\$16,170.00

Jamie C.
Osganian

16.2

\$450.00

\$7,290.00

Total

91.5

\$65,315.00

(Moon Decl. ISO Final Approval, ¶¶66.)

Therefore, Class Counsel has spent a total of 91.5 hours on this matter for a total loadstar of \$65,315, requiring a multiplier of 1.92 to reach the fee request. (Moon Decl. ISO Final Approval, ¶¶66, 69.c.)

As for costs, Class

Counsel is requesting \$16,954.99, which is less

than the settlement cap of \$18,000. (Moon Decl. ISO Final Approval, ¶73

and Exhibit 4 thereto.) Class counsel has incurred costs of \$16,954.99.(Ibid.) The

costs in this case include, but are not limited to, filing fees (\$1,481.72), Case Anywhere costs, and mediation costs (\$13,000). (Ibid.) The costs seem reasonable and

necessary to litigation. (Ibid.)

Based on the above, the recommendation

is to award \$125,669.50 (1/3 of USA) for

fees and \$16,954.99 for litigation

costs.

D.

Incentive

Award to Class Representative

The

Settlement Agreement provides for up to \$5,000 for a

Service Payment to the Named Plaintiff. (Settlement Agreement, ¶3.2.1.)

Plaintiff Flores represents that his contributions

to this litigation include, but are not limited to the following: obtaining

counsel, gathering documents, reviewing documents, answering counsel's

questions, identifying witnesses, preparing for and remaining available for

mediation, and reviewing the settlement. (Declaration of Plaintiff Flores, ¶¶10-14, 18-20,)

Based

on the above, the recommendation is to award an enhancement award in the amount

of \$5,000.

E.

Claims

Administration Costs

The claims administrator requests \$6,000 for the costs of administering the settlement. (Henriquez Decl., ¶18.) This is equal to the \$6,000 maximum amount disclosed in the notice to class members, to which there were no objections. (Henriquez Decl., ¶10 and Exhibit A thereto.)

Based on all the work performed by the Claims Administrator, the recommendation is to award costs in the requested amount of \$6,000.

[1] Uncredited Settlement Amount \$300,000 +
\$77,008.50 Escalator Increase + \$92,500 Credit for Previously Paid Claims = \$469,508.50
GSA